PANJAB UNIVERSITY, CHANDIGARH

(Estted. under the Panjab University Act VII of 1947- enacted by the Govt. of India)

FACULTY OF ARTS

SYLLABI

FOR

Diploma/Certificate Course

In

Inclusive & Sustainable Development under Indian Constitution

EXAMINATIONS, 2021-22

Diploma/Certificate Course in

Inclusive & Sustainable Development under Indian Constitution

Objective- United Nation Development Program proposes the inclusiveness and Sustainable Development to include people who are excluded from mainstream development because of their gender, ethnicity, disability, caste, community or poverty. It establishes that everyone should be given chance to participate in and get benefits from the development by creating conditions for inclusive and sustainable growth which include three dimensions of sustainable development:- Social, economic and environment. This is in consonance with Dr. B.R. Ambedkar's Philosophy of equality and fraternity.The objectiveof this course is to impart the same to the students so that they are able to understand the noble vision of Dr. B.R. Ambedkar and can enact his idea in the form of Constitution. Dr. B.R. Ambedkar is the chief architect of the Constitution of India and voiced for the inclusiveness of people with the Indian constitution. The Constitution has provided everyone enough space and share in the institution mechanism along with the individual dignity. The Constitution has strength to keep every section of the Indian society along with it. Therefore sustainable development of every section is possible.

Pedagogy: There will be five papers with 100 marks each. Internal division of paper will be 80 marks for theory and 20 marks for project report. Along-with 5 papers, the student will be required to prepare a project report with 100 marks. The studenthas to obtain 50 percentage marks in each paper to get the pass certificate in the course.

Nature of course: The course shall be a certificate courseand Diploma certificate course. Student has the option to either complete certificate course after taking three papers of first Semester from Paper-I to Paper Paper-III, on the completion of these three (3) papers a certificate course shall be awarded to the candidate. If a student opts for all six papers from paper-IV to VIin second Semester Diploma course shall be awarded. Students have also the option to complete one or more paper of 4 credits.

Admission and Exams: Admission and Exam shall be conducted as per the rules and regulations of the PanjabUniversity**.** Admission to both the course shall be in the month of July.**Main Examination of Diploma Course in both the subjects shall be conducted in the month of May and Reappear in the month of December, whereas for Certificate Course examination shall be held in the month of December and reappear examination in the month of May respectively.**

Fee structure:
ForDiploma courses Rs. 10,000/-ForCertificate Course Rs. 5000/- and Rs. 2000/- for each paper.

Paper I - Constitutional Philosophy of Dr. B.R. Ambedkar&Sustainable Development

Maximum Marks: 100 (Theory: 80+ Project Report: 20)Credits; 4, Total working 40 to 50 hours

Minimum Eligibility: 10+2

Objective of the Paper is to acquaint the students with basics of the subject and make them aware about the contribution of Dr. B.R. Ambedkar in the making of the Constitution of India so that students are able to understand the basic philosophy and ideas imbibed in the Constitution and by acting on these ideals contribute tothe strengthening of the Constitution.

Unit I
Features of the Constitution

Ambedkar's views on Preamble, Federalism, Separation of powers and Citizenship

Unit II
Rights and Duties under Constitution of India

Interrelations of Individual rights; Life, Privacy, Dignity, Speech & Expression; Collective rights; Right to work, Health, Environment& Development
Duties of Citizens- towards Nation, Constitution, Institutions, Society, Individuals & self

Unit III
Constitutional Governance

Interrelation of Organs of Government; Checks & Balances among Legislature-Executive-Judiciary-Media

Unit IV
Powers and Privileges of Stateand Citizen's Rights

Immunity to President & citizen's rights; Parliamentary Privileges& citizen's rights; Contempt of Courts & citizen's rights

***Suggested Readings**:*

- D. Basu, Introduction to the Constitution of India (Wadhwa, Nagpur, 2011)
- P.M. Bakshi, Constitutional Law (Universal Law Publishing Co., 2019)
- Constituent Assembly Debate
- Dr. B.R Ambedkar Writing and Speeches, Dr. BabasahebAmbedkar Source Material Publication Committee Higher Education Department, Government of Maharashtra, 2003.

Paper II
Protection of Women and Children

Maximum Marks: 100 (Theory: 80+ Project Report: 20) Credits; 4, Total working 40 to 50 hrs.
Minimum Eligibility: 10+2
Objective of the Paper is to acquaint the students with basics of the empowerment of Women and protection to the children and make them aware about minimum legal procedure involved and the institution like police, courts etc. involved for the protection of women and children.

Unit I
Dr. B.R. Ambedkar's Philosophy and International and National legal Provisions

CEDAW 1979;Constitutional safeguards for women including Fundamental Rights, Directive Principle of State Philosophy & Fundamental Duties; Working of National Commission for Women.

Unit II
Protection of Women from Domestic Violence & Sexual Harassment

Protection of Women from Domestic Violence; Prohibition & Prevention of Sexual Harassment of Women

Unit III
Rights of Children

UNICEF: United Nations Convention on the Rights of the Child 1989; Constitutional safeguards for Children including Fundamental Rights, Directive Principle of State Policy& Fundamental Duties; Right to Education of Children (Article 21-A)

Unit IV
Protection of Children

Protection of Children from Sexual Offences Act, 2012; Functioning of National commission for the protection of the Children; Prohibition of Child marriage; Prohibition of employment of children in certain occupations and processes

Suggested Readings:

- Domestic Violence Act 2005
- Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013
- United Nations Convention on the Rights of the Child 1989
- Constitution (Eighty-sixth Amendment) Act, 2002
- Protection of Children from Sexual Offences Act, 2012.
- Dr. B.R Ambedkar Writing and Speeches, Dr. BabasahebAmbedkar Source Material Publication Committee Higher Education Department, Government of Maharashtra, 2003.

Paper III
Mainstreaming of SC/ST/OBC/ Minorities and Inclusive Process

Maximum Marks: 100 (Theory: 80+ Project Report: 20)Credits; 4, Total working 40 to 50 hrs.
M**inimum Eligibility: 10+2**
Objective of the Paper is to acquaint the students with basic provisions of the Constitution which provides for sustainable development of all sections of the society.

Unit I
Inclusive Process and Sustainable Development

Inclusive Process and its different criteria: Caste, Occupation, Economic, Religion & Language criteria; Sustainable Development and Govt. Policies & Programmes for inclusiveness

Unit II
Sustainable Development and Protective Discrimination

Rights of Scheduled Tribes on Forests &Scheduled Castes; Minorities and their Rights

Unit III
Mechanism for enforcement of Equal Protection of law and Equality before Law

Article 17 of the Constitution of Indiaand Protection of Civil Rights; Prevention of Atrocities on Scheduled Castes and the Scheduled Tribes

Unit IV
National Commissions on SCs, STs, OBCs, & Minorities

Composition and Functioning of National Commissions on SCs, STs, OBCs, & Minorities

Suggested Readings

- Forests Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006
- The Scheduled Castes and the Scheduled Tribes (Prevention of Atrocities) Act, 1989
- Protection of Civil Rights Act, 1955
- Dr. B.R Ambedkar Writing and Speeches, Dr. BabasahebAmbedkar Source Material Publication Committee Higher Education Department, Government of Maharashtra, 2003.

Paper IV
Labour welfare Legislation

Maximum Marks: 100 (Theory: 80+ Project Report: 20) Credits; 4, Total working 40 to 50 hours
Minimum Eligibility: 10+2
Objective of the Paper is to acquaint the students with basics of labour welfare laws and to make them aware about the rights of organized and unorganized labourers so students are sensitized towards it and protection of the rights of such labourer.

Unit I
Constitutional safeguarding to Labour

Directive Principles of States Policy: Provision for just and humane conditions of work(Article 42); Maternity relief (Article 42); Participation of workers in management of industries. (Article 43-A); Regulation of conditions of work of children; Prohibition of employment of children in certain occupations and processes (Article-24)

Unit II
Ambedkar's Philosophy: Remuneration and Economic Equality

Remuneration at equal rates to men and women; Fixing of minimum rates of wages
Concept of minimum wages& Living wage; Right to payment of maternity benefit

Unit III
Social Security for Un-Organised Workers

National Social Security Board; State Social Security Board; Eligibility for registration and social security benefits& Bonus.

Unit IV
Eradication of Manual scavenging and welfare of SafaiKaramcharis

Prohibition of employment as Manual scavengers and their Rehabilitation; The National Commission for SafaiKaramcharis.

Suggested Readings:

- Child Labour (Prohibition and Regulation) Act, 1986
- Equal Remuneration Act, 1976
- The Minimum Wages Act 1948
- Maternity Benefit Act, 1961
- Workmen's Compensation Act, 1923
- Manual Scavengers and Their Rehabilitation Act, 2013.
- SafaiKaramchari Act, 1993
- Unorganised Workers' Social Security Act, 2008
- Payment of Bonus act, 1965
- Dr. BabasahebAmbedkar Writings and Speeches, Vol. 17, Part 3

Paper V
Educational Institutions, PublicEmployment & Sustainable Development

Maximum Marks: 100 (Theory: 80+ Project Report: 20) Credits; 4 Total working 40 to 50 hours

Objective of the Paper is to acquaint the students with basics of rules and regulations of admissions in the educational institutions and policy regarding the representation of all sections of the society in the public employment.

Unit I
Social Empowerment through Political Empowerment

Reservation: Concept, objectives& Contemporary issues and Challenges- Panchayati Raj Institutions; Special representation to SCs & STs in Legislature (Article 330-Article 334 of the Constitution of India)

Unit II
Inclusiveness and Sustainability through Public Employment

Article 16; Claims of SCs & STs to services and posts & Article 335; Inclusion of SCs & STs under Articles 341& 342

Unit III
Protection and Promotion of Sustainability in Educational Institutions

Article 15: Admission in Educational Institutions; different rules for inclusive Procedure; Reservation in Admissions in Central Educational Institutions; Right to Higher and professional education.

Unit IV
Reservation in Services

Reservation in Services:Chandigarh, Punjab, Haryana & Himachal Pradesh

Suggested Readings:

- The Punjab Scheduled Castes and Backward Classes (Reservation in services) Act 2006
- Right to Education Act, 2009
- Central Educational Institutions (Reservation in Admissions) Act, 2006
- Dr. B.R Ambedkar Writing and Speeches, Dr. BabasahebAmbedkar Source Material Publication Committee Higher Education Department, Government of Maharashtra, 2003.

Paper VI

Project Report: 100 Marks

Students are required to prepare a Project Report/ Field Study/ Empirical Study on any of the topic mentioned from Paper I – Paper V or on any other topic related to the topics mentioned in syllabus.

Guidelines for Project report:-Handwritten or typed, in about 1500 words.

Marks Allocation-
Written/Typed submission- 60 Marks
Viva-voce- 40 Marks

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